WILLIAM MAGORA
versus
THE PROVINCIAL MINING DIRECTOR N.O
MASHONALAND CENTRAL PROVINCE
and
MASSAH MBOFANA
and
DEEP DOWN MINING (PVT) LTD
and
THE OFFICER IN CHARGE N.O
C.I.D MINERALS FLORA AND FAUNA UNIT BINDURA

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 14 November 2025 & 8 May 2026

Court Application

C Mbara, for the applicant
T J Gundumura, for the 1st respondent
T Ndlovu, second and 3rd respondents

MANZUNZU J

INTRODUCTION

(1) This is a court application for review in terms of rule 62 of the High Court Rules, 2021 as read with section 26 and 27 of the High Court Act [*Chapter 7:06*]. The applicant seeks relief as follows;

1. "The court application for review succeeds.
2. The first Respondent's decision of the third of July 2025 directing the applicant to adjust Mont Dor AB outside Mont Dor 98.99 and 100 be and is hereby set aside and substituted with:
   2.1 Applicant's Mont Dor AB be and is hereby declared the lawful owner of its approved ground position with the following mining claim coordinates,

	X	Y
A	3644492	8089587
B	364786	8089473
C	364395	8094278

D 364146	8089452
SITE A	
B 364844	8089582
C 364820	8089498
D 364790	8089482
E 364492	8089597

2.2 Second and third respondents and all those claiming occupation through them, be and are hereby ordered to vacate the Mont Dor AB approved ground position identified in part 2.2 above.

3. The Respondents be and hereby ordered to pay costs of suit on a legal practitioner client scale."

GROUNDS FOR REVIEW

(2) The applicant raised two grounds for review in that the decision of the first respondent was grossly irregular and grossly unreasonable.

BACKGROUND

The applicant asserts the following facts which are more or less common cause in support of his application:

(3) The applicant is a male adult.
(4) The first respondent is the Provincial Mining Director, Mashonaland Central Province and is cited in his official capacity.
(5) The second and third respondents are cited as interested parties.
(6) The fourth respondent is cited in his official capacity as the Officer in Charge Minerals (Flora and Fauna) unit Bindura.
(7) On 26 October 2012 the applicant pegged and registered Mont Dor AB mine under Union Mining, Syndicate.
(8) The Applicant then erected permanent beacons and planted a gumtree fence to demarcate the block.
(9) The applicant worked on the area from 2012 sinking several shafts and he started producing gold in 2014
(10) In 2015, the applicant realised that the map position was different from the ground position. The applicant applied to the first Respondent to relocate the map position to conform to the ground position.
(11) The first respondent also approved the applicant's application to relocate the map position to conform to the Mont Dor mine ground position.

(12) In 2016 a boundary dispute between the applicant and second respondent arose, the dispute was resolved by the first respondent on 20 September 2016.
(13) The second respondent appealed to the Permanent Secretary for Mines and Minerals Development against the first respondent's decision. The first respondent's decision was upheld on appeal.
(14) In 2021, the second respondent invaded part of Mont Dor AB and started a mining operation. The applicant reported the matter to the first respondent who directed for his eviction.
(15) The second respondent approached this court on an urgent basis challenging his removal from the disputed area. For the purposes of determining the dispute an order by consent was made directing the first respondent to conduct a ground survey to determine whether the disputed area fell within Mont Dor AB.
(16) The first respondent approved the survey conducted pursuant to the order by consent under case number HC561/21. The applicant took the decision of the first respondent on review under case number HCH624/24 to which case the third respondent was joined as a party on the basis that it had acquired rights in Mont Dor 98 and 99.
(17) Following the granting of the application for joinder, the parties engaged each other and resolved that the matter be remitted back to the first respondent for implementation of the 2016 resolution and for a determination of the dispute in a wholesome manner involving all the affected mining claims, that is Mont Dor AB, 98, 99, 100 and 101 so that there is finality to the matter.
(18) As per the order by consent the first respondent conducted a ground survey on 15 May 2025. In the report, the first respondent directed and recommended that the applicant adjust Mont Dor AB outside Mont Dor 98, 99 and 100.
(19) The High Court Order in HCH624/24 directed the applicant to demarcate the boundaries of Mont Dor AB and Mont Dor 98, 99, 100, 101 and to consider the ground positions of the respective claims in relation to the registration of their coordinates.
(20) The applicant challenges the first respondent's decision on review that the applicant adjust Mont Dor AB outside Mont Dor 98, 99 and 100.
(21) The applicant raises the following grounds of review:

1. That the first respondent's decision was grossly irregular in that it directs the applicant to adjust Mont Dor AB outside Mont Dor 98, 99 and 100. The applicant argues that the first respondent did not consider the Mont Dor AB approved position. Thus, the decision being irregular because it is contrary to an extant decision by the Permanent Secretary for Ministry of Mines and Mining Development of 2017 which upheld the first respondent's 2016 resolution and approved the Mont Dor AB mine ground position.
2. The applicant also alleges that the first respondent's decision was grossly unreasonable. The applicant states that the ground survey of the 15th of May 2025 was improperly conducted by the first respondent, who ought to have been informed of the 2016 resolution which approved the Mont Dor AB ground position. Thus, the applicant argued that the directive to adjust Mont Dor 98,99 and 100 was grossly unreasonable.

(22) The second and third respondents opposes the application and submits that the relief sought is incompetent, unfounded both in fact and law and constitutes an abuse of the court process.

(23) The first respondent alleges that they correctly implemented the order, when he identified an overlap between the Mont Dor AB claim and Mont Dor 98, 99, 100 and 101 blocks and it was done in accordance with section 177 of the Mines and Minerals Act [*Chapter 21:05*].

(24) The first respondent argues that their implementation ensured that the rights of Mont Dor 98-101 claims retained their legal integrity while Mont Dor AB claim was recognised only to the extent permissible at law without encroaching upon prior rights.

(25) The first respondent also alleges that the applicant was duly notified of and participated in the implementation exercise and did not raise any objections at the relevant time.

(26) The first respondent also alleges that the applicant has not established any procedural or substantive irregularity warranting interference by this court.

(27) The first respondent also states that the applicant's reliance on a 2016 resolution is misplaced because the document is not incorporated into the HCH624/24 court order

ISSUE FOR DETERMINATION

(28) Whether or not the application for review ought to be granted.

THE LAW

(29) The High Court Act [*Chapter 7:06*] provides the court's power of review. It states that:

> "section 26, Power to review proceedings and decisions
>
> Subject to this Act and any other law, the High Court shall have power, jurisdiction and authority to review all proceedings and decisions of all inferior courts of justice, tribunals and administrative authorities within Zimbabwe.
>
> Section 27, Grounds for review
>
> (1) Subject to this Act and any other law, the grounds on which any proceedings or decision may be brought on review before the High Court shall be—
>
> (a) absence of jurisdiction on the part of the court, tribunal or authority concerned;
>
> (b) interest in the cause, bias, malice or corruption on the part of the person presiding over the court or tribunal concerned or on the part of the authority concerned, as the case may be;
>
> (c) gross irregularity in the proceedings or the decision.
>
> (2) Nothing in subsection (1) shall affect any other law relating to the review of proceedings or decisions of inferior courts, tribunals or authorities."

(30) Rule 62 of the High Court Rules, 2021 lays the procedure for reviews. It states that:

> "62.(1) Save where any law otherwise provides, any proceedings to bring under review the decision of any inferior court or of any tribunal, board or officer performing judicial, quasi-judicial or administrative functions, shall be by way of court application directed and delivered by the party seeking to review such decision or proceedings to the magistrate, presiding officer or chairperson of the court, tribunal or board or to the officer, as the case may be, and to all other parties affected.
>
> (2) The court application shall state shortly and clearly the ground upon which the applicant seeks to have the proceedings set aside or corrected and the exact relief prayed for all of which shall appear on the face of the court application."

(31) The court in *Ex Sergent T Major Jambwa & Ors* v *The Commissioner of Police & Anor* HH698-22 highlighted the purpose of review of proceedings and decisions of inferior courts, tribunals and or administrative bodies. The court held that;

> "The question which begs the answer is why the Legislature pass a law which allows the court to review proceedings and decisions of inferior courts, tribunals and/or administrative bodies. The answer to the question posed is simple. The purpose of the review process is to ensure that an individual receives fair treatment at the hands of the authority to which he has been subjected: *Magugu* v *Police Service Commission & Anor,* 2010 (2) ZLR 185 (H). The intention of the Legislature in enacting sections 26 – 29 of the High Court Act is clear. The tribunal or officer, the sections stress, must as nearly as possible comply with the rules of procedure and evidence as is done in the country's courts. Where the tribunal or trial officer significantly departs from the procedure set out in criminal proceedings in the courts of Zimbabwe, the proceedings may be set aside on review. The test applied on reviewing

> proceedings is whether or not the proceedings are in accordance with real and substantial justice: *Chillufiya* v *Commissioner-General of Police & Others,* HH 89/10."

ANALYSIS

(32) Section 27 of the High Court Act provides the grounds of review. These are;

> (a) absence of jurisdiction on the part of the court, tribunal or authority concerned;
>
> (b) interest in the cause, bias, malice or corruption on the part of the person presiding over the court or tribunal concerned or on the part of the authority concerned, as the case may be;
>
> (c) gross irregularity in the proceedings or the decision.

(33) The applicant alleges that the decision by the first respondent was grossly irregular, whereas the first respondent argued and stated that they were acting in terms of s177 of the Mines and Minerals Act which provides for priority of mining rights. It provides that:

> "(8) If the holder of any mining location claims that an encroachment has been made on his location by a subsequent pegger, and the subsequent pegger proves—
>
> (a) that there is no encroachment according to the beacons existing at the time when such subsequent pegger pegged the alleged encroachment; and
>
> (b) that the alleged encroachment was caused by the failure of the claimant or of his predecessor in title to maintain his beacons in their original positions; the claimant shall be ordered to establish or replace his beacons in their original positions as shown on the survey or sketch plan lodged with the mining commissioner, and no action for damages shall lie against the subsequent pegger for any damages caused by the alleged encroachment."

(34) The Supreme Court in *Girjac Services (Pvt) Ltd* v *Mudzingwa* 1999 (1) ZLR 243 (S) held that administrative actions must be taken in accordance with the law and due process. The applicant has not shown that the first respondent's decision is irregular. The first respondent shows that he acted in terms of s177 of the Mines and Minerals Act. The decision was arrived at in accordance with the law and due process was followed.

(35) The applicant also raises a ground of review that the decision is unreasonable. The court in *Suvillian Enterprises (Pvt) Ltd* v *Provincial Mining Director Mashonaland West Province& Anor* HH 207/25, found that an argument that the decision was unreasonable is unpersuasive. It held:

> "Finally, the argument that the decision was unreasonable is unpersuasive. The test for gross unreasonableness is set out in *Mwanyisa v Minister of Finance* SC 6/02, where the Supreme

> Court held that a decision must be so irrational that no reasonable authority would have made it:
>
> "A decision must be so irrational that no reasonable authority would have made it in order for a court to interfere under review proceedings."

The decision by the first respondent was not unreasonable, he was acting within the scope of his authority and in terms of the Mines and Minerals Act.

CONCLUSION

(36) None of the grounds for review has merit. The application is bound to fail.

DISPOSITION

The application for review be and is hereby dismissed with costs.

MANZUNZU J……

Tadiwa and Associates, applicant's legal practitioners
Civil Division of the Attorney General, 1st & 4th respondents' legal practitioners
T I Ndhlovu and Partners, 2nd and 3rd respondents' legal practitioners